

STATE OF NEW YORK

7792--C

2025-2026 Regular Sessions

IN SENATE

May 6, 2025

Introduced by Sens. FAHY, ADDABBO, ASHBY, BORRELLO, BRISPORT, BROUK, BYNOE, CANZONERI-FITZPATRICK, CHAN, CLEARE, COONEY, FERNANDEZ, GONZALEZ, GOUNARDES, HARCKHAM, HINCHEY, JACKSON, LANZA, LIU, MARTINEZ, MARTINS, MATTERA, MAY, MAYER, MURRAY, MYRIE, OBERACKER, PALUMBO, RAMOS, RIVERA, C. RYAN, SALAZAR, SCARCELLA-SPANTON, SEPULVEDA, SERRANO, SKOUFIS, SUTTON, TEDISCO, WEBER, WEIK -- read twice and ordered printed, and when printed to be committed to the Committee on Disabilities -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Disabilities in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the mental hygiene law, in relation to protecting the communication rights of individuals with disabilities

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The mental hygiene law is amended by adding a new section 13.45 to read as follows:

§ 13.45 New York state communication bill of rights for individuals with disabilities.

In order to ensure that each person with a disability is able to lead a life of dignity, all persons with a disability shall have the right to autonomously communicate in their preferred manner and utilize any validated communication supports that meet their needs, and all staff and providers under this section shall ensure and acknowledge such rights. For the purposes of this section, the term "validated communication" shall mean that the communication method used is evidence-based, empirically supported and has demonstrated results in autonomous communication on the part of the person communicating.

§ 2. This act shall take effect on the one hundred eightieth day after it shall have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD10990-15-6